

Veerendra Kumar Jain v. State of U.P. & Others

Allahabad High Court · Division Bench · 2 April 2019 · 2019 SCC OnLine All 3289 · Writ - C No. 281 of 2011 · **Writ petition disposed of; consumer relegated to the Clause 7.10 CGRF/Ombudsman remedy**

HEADNOTE

A grievance about two bills raised simultaneously for one electricity connection is a billing grievance to be raised before the Consumer Grievance Redressal Forum and the Ombudsman under Clause 7.10 of the U.P. Electricity Supply Code, 2005 (the forum reference being printed on the bill itself). The Court relegated the consumer to that remedy, to be considered on merits within 45 days, and continued the existing interim order until disposal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Billing grievance (duplicate bills) belongs to the Clause 7.10 CGRF/Ombudsman route

QUESTION

Should the writ court adjudicate a complaint of two simultaneous bills, or is it for the Clause 7.10 forum?

HOLDING

It is for the Clause 7.10 forum. The consumer is relegated to the CGRF/Ombudsman under Clause 7.10 (the forum being noted on the bill), his application to be decided on merits within 45 days; the interim order continues until then. ¶ 2-5

LIMITING FACTS

Two bills raised simultaneously for one connection (No. 068335).

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A duplicate-billing grievance is for the Clause 7.10 CGRF/Ombudsman route in the first instance, not the writ court. ¶ 4